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Submitter Information

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General Comment

A lot of generative AI (mainly AI systems the public has access to that can generate text, images and/or video) has been using copyrighted material without permission or consent from the individuals or companies that own the copyrighted material. These big tech companies can take any form of media from the internet, feed it into the AI system to study and create works using that media, tell the AI to make something just like the media that they just put into it, then publish and earn a profit from what the AI produced while the original creator doesn't get any of the profit and never had any say or consent in the process they very likely didn't know was happening. They can take media from any site, regardless of said site's terms and conditions, and use their work to profit off of it.

The big tech companies are very much aware of the legal issues this poses and know it's not going to end in their favor once the court cases catch up. They're trying to find a way to continue to steal and use copywritten content for their AI systems, and Google and OpenAI are trying to use the opportunity of this executive order to change the law and make their practice of stealing copywritten content legal. There are many negative effects this will cause.

1. This will cause a huge crash in artistic and creative economics, as anything made by anyone can be taken and fed into an AI to then mass produce media and products that replicate the stolen media and take a lot of the profits from the original creator(s). This will cause many people to quit and many companies to go bankrupt overtime, causing unemployment to skyrocket and America having to face all the issues that'll bring.

2. Legal loopholes could easily develop, as if any media created by AI can be copywritten, any media could easily be modified with very few adjustments, and as long as whoever published it says it was created by AI, it gets copywritten. It doesn't even need to be created by an AI. Someone could take the source code of existing software, remove all the credits and logos of the people and groups that helped create the software, claim they made it all, and as long as they say it was produced by AI, they effectively stole and copywritten something that's not theirs.

3. It's unlikely that any copywrite laws in favor for AI will be the same for every other country, especially the European Union. This could cause chaos for media produced in a country where using it for AI is illegal, potential mass segregation of billions of users not being able to see content or go to websites hosted in another country.

Big Tech AI should not be able to use copywritten material to use in their AI models, requiring explicit consent from the copywritten holder if they wish to use it to train the AI. And I do mean explicit, nothing hidden behind huge long text boxes like the terms of service or private policy and a majority of people don't read.